

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding

Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113

Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

LINE 3	24PR198048	<i>The Fazzio Family Trust</i>	The hearing on the instant motion must be continued for Petitioners to serve Decruz. Petitioner is ordered to come to the hearing to set a new date.
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Calendar lines 1 and 2**Case Name: Estate of Enrique J. Penades****Case No.: 23PR196296****INTRODUCTION**

On December 22, 2023, Elizabeth T. Penades (“Elizabeth¹”) filed a petition (the “Petition”) to probate the estate of her brother Enrique J. Penades (“Decedent” or “Henry”), who passed away on November 11, 2023. Elizabeth attached to this petition to probate a “Holographic Will and Testament” (the “Will”). On September 11, 2024, Lisa Penades (“Petitioner” or “Lisa”), Henry’s surviving spouse, filed a petition to revoke the Will (the “Will Contest”) on the grounds of undue influence, duress, and mistake. On December 23, 2024, Elizabeth and her sister Caroline Penades (collectively, “Respondents”) filed a motion for judgment on the pleadings as to the Will Contest on the grounds that it was time-barred and mistake. On January 27, 2025, the Court (Hon. Rosen) issued its order which denied the motion as to the timeliness argument and granted it, finding no mistake, with leave to amend.

On July 1, 2025, Lisa filed a second amended spousal property petition (“SASPP”), identifying certain assets of Decedent’s to which she contends she is entitled to half because those assets were purchased with or contained community property. Respondents filed a demurrer to Petitioner’s SASPP on the grounds that it is time-barred and fails to state facts sufficient to constitute a cause of action. On January 9, 2026, this Court (Hon. Rosen) overruled the demurrer.

On February 2, 2026, Lisa filed a request for dismissal of her third amended spousal property petition, without prejudice. On February 17, 2026, Lisa filed a petition to determine entitlement to distribution and confirm surviving spouse’s community property interest in the assets of the estate. On April 23, 2026, Respondents filed a demurrer on the grounds that the Petition fails to state facts sufficient to state cause of action and motion to strike portions of the Petition. Petitioner opposes the motions and Respondent filed replies.

DISCUSSION**I. Requests for Judicial Notice****a. Respondents’ Request**

Respondents request judicial notice of the February 17, 2026 petition currently at issue. The request is denied as unnecessary. (See *Paul v. Patton* (2015) 235 Cal.App.4th 1088, 1091, fn. 1 [“Judicial notice is unnecessary because, in our review of the demurrer ruling, we accept the allegations in the complaint and the facts in the exhibit as true”].) The request for judicial notice of the verified Will Contest and Petition to Revoke Probate of Purported Will (Exhibit 2) to support a sham argument is denied as the petition has since been dismissed. Respondents request judicial notice of three prior versions of Petitioner’s Spousal Property Petition (Exhibits 3-5). The request is denied as unnecessary as the prior versions of the petition are no longer

¹ The court refers to several individuals by their first name for clarity as each party in the dispute has the same last name. No disrespect is intended.